



General Assembly

February Session, 2026

Raised Bill No. 5310

LCO No. 1837



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

***AN ACT CONCERNING AN AFFIRMATIVE DEFENSE FOR A
CRIMINAL VIOLATION OF A PROTECTIVE ORDER OR A STANDING
RESTRAINING ORDER.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 53a-223 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) A person is guilty of criminal violation of a protective order when
4 an order issued pursuant to subsection (e) of section 46b-38c, subsection
5 (f) of section 53a-28, or section 54-1k or 54-82r has been issued against
6 such person, and such person violates such order.

7 (b) No person who is listed as a protected person in such protective
8 order may be criminally liable for (1) soliciting, requesting,
9 commanding, importuning or intentionally aiding in the violation of the
10 protective order pursuant to subsection (a) of section 53a-8, or (2)
11 conspiracy to violate such protective order pursuant to section 53a-48.

12 (c) Criminal violation of a protective order is a class D felony, except
13 that any violation of a protective order that involves (1) imposing any

14 restraint upon the person or liberty of a person in violation of the
15 protective order, or (2) threatening, harassing, assaulting, molesting,
16 sexually assaulting or attacking a person in violation of the protective
17 order is a class C felony.

18 (d) In any prosecution for a criminal violation of a protective order
19 under this section, it shall be an affirmative defense that the protected
20 person, directly, indirectly or through a third person, initiated or
21 encouraged the contact or conduct prohibited pursuant to the order,
22 unless the defendant's resulting contact or conduct constitutes a
23 separate criminal offense.

24 Sec. 2. Section 53a-223a of the general statutes is repealed and the
25 following is substituted in lieu thereof (*Effective October 1, 2026*):

26 (a) A person is guilty of criminal violation of a standing criminal
27 protective order when an order issued pursuant to subsection (a) of
28 section 53a-40e has been issued against such person, and such person
29 violates such order.

30 (b) No person who is listed as a protected person in such standing
31 criminal protective order may be criminally liable for (1) soliciting,
32 requesting, commanding, importuning or intentionally aiding in the
33 violation of the standing criminal protective order pursuant to
34 subsection (a) of section 53a-8, or (2) conspiracy to violate such standing
35 criminal protective order pursuant to section 53a-48.

36 (c) Criminal violation of a standing criminal protective order is a class
37 D felony, except that any violation that involves (1) imposing any
38 restraint upon the person or liberty of a person in violation of the
39 standing criminal protective order, or (2) threatening, harassing,
40 assaulting, molesting, sexually assaulting or attacking a person in
41 violation of the standing criminal protective order is a class C felony.

42 (d) In any prosecution for a criminal violation of a standing criminal
43 protective order under this section, it shall be an affirmative defense that

44 a protected person, directly, indirectly or through a third person,
45 initiated or encouraged the contact or conduct prohibited by the order,
46 unless the defendant's resulting contact or conduct constitutes a
47 separate criminal offense.

48 Sec. 3. Section 53a-223b of the general statutes is repealed and the
49 following is substituted in lieu thereof (*Effective October 1, 2026*):

50 (a) A person is guilty of criminal violation of a restraining order when
51 (1) (A) a restraining order has been issued against such person pursuant
52 to section 46b-15, or (B) a foreign order of protection, as defined in
53 section 46b-15a, has been issued against such person in a case involving
54 the use, attempted use or threatened use of physical force against
55 another, and (2) such person, having knowledge of the terms of the
56 order, (A) does not stay away from a person or place in violation of the
57 order, (B) contacts a person in violation of the order, (C) imposes any
58 restraint upon the person or liberty of a person in violation of the order,
59 or (D) threatens, harasses, assaults, molests, sexually assaults or attacks
60 a person in violation of the order.

61 (b) No person who is listed as a protected person in such restraining
62 order or foreign order of protection may be criminally liable for (1)
63 soliciting, requesting, commanding, importuning or intentionally
64 aiding in the violation of the restraining order or foreign order of
65 protection pursuant to subsection (a) of section 53a-8, or (2) conspiracy
66 to violate such restraining order or foreign order of protection pursuant
67 to section 53a-48.

68 (c) No person who is listed as a respondent in a restraining order
69 issued pursuant to section 46b-15 or a foreign order of protection issued
70 pursuant to section 46b-15a and against whom there is an order of no
71 contact with the protected party or parties may be criminally liable for
72 a violation of such order if such person causes a document filed in a
73 family relations matter, as defined in section 46b-1, to be served on the
74 protected party or parties in accordance with the law by mail or through

75 a third party who is authorized by statute to serve process.

76 (d) (1) Except as provided in subdivision (2) of this subsection,
77 criminal violation of a restraining order is a class D felony.

78 (2) Criminal violation of a restraining order is a class C felony if the
79 offense is a violation of subparagraph (C) or (D) of subdivision (2) of
80 subsection (a) of this section.

81 (e) In any prosecution for a criminal violation of a restraining order
82 under this section, it shall be an affirmative defense that a protected
83 person, directly, indirectly or through a third person, initiated or
84 encouraged the contact or conduct prohibited by the order, unless the
85 defendant's resulting contact or conduct constitutes a separate criminal
86 offense.

87 Sec. 4. Section 53a-223c of the general statutes is repealed and the
88 following is substituted in lieu thereof (*Effective October 1, 2026*):

89 (a) A person is guilty of criminal violation of a civil protection order
90 when (1) a civil protection order has been issued against such person
91 pursuant to section 46b-16a, and (2) such person, having knowledge of
92 the terms of the order, violates such order.

93 (b) No person who is listed as a respondent in a civil protection order
94 issued pursuant to section 46b-16a may be criminally liable for a
95 violation of such order if such person causes a legal document to be
96 served on the protected person by mail or through a third party in
97 accordance with the law. For purposes of this subsection, "legal
98 document" includes, but is not limited to, a notice of appearance or any
99 other application, petition, or motion filed in good faith by such person
100 in connection with any pending court matter, or in any court matter that
101 may be brought subsequently.

102 (c) Criminal violation of a civil protection order is a class D felony.

103 (d) In any prosecution for a criminal violation of a civil protective

104 order under this section, it shall be an affirmative defense that a
105 protected person, directly, indirectly or through a third person, initiated
106 or encouraged the contact or conduct prohibited by the order, unless the
107 defendant's resulting contact or conduct constitutes a separate criminal
108 offense.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	53a-223
Sec. 2	<i>October 1, 2026</i>	53a-223a
Sec. 3	<i>October 1, 2026</i>	53a-223b
Sec. 4	<i>October 1, 2026</i>	53a-223c

Section 1	<i>October 1, 2026</i>	53a-223
Sec. 2	<i>October 1, 2026</i>	53a-223a
Sec. 3	<i>October 1, 2026</i>	53a-223b
Sec. 4	<i>October 1, 2026</i>	53a-223c

Statement of Purpose:

To establish an affirmative defense for a criminal violation of a protective order or a standing restraining order in the case of contact being initiated by a protected person.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]